

25NNCV02634 25NNCV02634

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Division: Civil Law and Motion

Department: X

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Case Number: 25NNCV02634 Hearing Date: July 9, 2026 Dept: X

#5 - HAI J. WONG vs GARABED OUSTAYAN, et al.

MOTION TO INTERVENE AND TO EXPUNGE LIS PENDENS

A. PRD LLC is entitled to intervene for the limited purpose of moving to expunge the lis pendens.

PRD LLC has shown a direct interest in the property affected by the lis pendens. Lai declares that PRD LLC acquired the property at foreclosure and that the lis pendens remains recorded against it. Because the lis pendens burdens the property, disposition of the matter without PRD LLC's participation could impair PRD LLC's ability to protect its claimed interest.

PRD LLC states it discovered the lis pendens shortly after obtaining possession in March 2026, attempted informal resolution by the end of March 2026, and filed its motion on May 20, 2026. Wong identifies no prejudice from intervention and instead expressly does not oppose it.

Accordingly, the motion to intervene is GRANTED, limited to the lis pendens issue presented in the motion.

B. The lis pendens should be expunged.

Whatever the operative complaint may originally have alleged, Wong now expressly states that she does not oppose expungement and is not seeking recovery of title to, ownership of, or possession of the Arcadia property. She further states that her remaining claims concern alleged wrongful conduct and financial damages. (Response, ¶ 5.)

Wong has not carried her burden to establish the probable validity of any presently asserted real property claim supporting continued maintenance of the lis pendens. Her current position disclaims the very title- or possession-based relief that would justify the notice. To the extent her remaining claims are damages-based, a lis pendens is not a proper device to secure those claims.

The motion to expunge is therefore GRANTED.

The notice of pendency of action recorded as Los Angeles Recorder's No. 20250273748 against the real property commonly known as 2223 S. 2nd Avenue, Arcadia, California 91006, APN 5789-018-040, is EXPUNGED.

This order resolves only the intervention and lis pendens issues. It does not adjudicate the merits of Wong's remaining claims against any existing defendant.

Moving Party is to give notice.